

		(Hughes Decl.), ¶ 4.) Plaintiff contends that this statement may have been misconstrued to mean that he was unaware of the contents of Defendant's file. • Plaintiff declares that he is Defendant's son and has personal knowledge that the Defendant has had complaints of excessive force and sexual abuse complaints against him. Plaintiff also has personal knowledge that the LASD Internal Affairs Department has investigated and punished Defendant for various complaints. (See Hughes Decl., ¶ 4.) • Plaintiff has a reasonable belief that Defendant's LASD personnel file contains information showing a lack of credibility, falsifying police reports, prior acts involving moral turpitude, and information showing illegal detentions, arrests, searches, and seizures. (See Hughes III Decl., ¶ 4.) These facts do not qualify as "new" under Civil Procedure Code section 1008. Plaintiff fails to provide a "satisfactory explanation for the failure to produce that evidence at an earlier time" nor does he explain why, he "could not with reasonable diligence, have discovered or produced" this evidence at the time of the original motion. As Plaintiff asserts, he has personal knowledge of this information and thus, could have been expected to present it at the first possible date. In addition, Plaintiff provides this new information in a general, conclusory manner without providing any supporting facts or details. The documents attached to Plaintiff's declaration do not squarely support the assertions made in Plaintiff's declaration. The Los Angeles County Sheriff's Department shall give notice of this ruling.
6	M.V. Partners vs. Spectra Yoga, LLC 30-2022-01254798	<u>Motions to Compel Discovery</u> Plaintiff M.V. Partners' Motion to Compel Response to Post Judgment Debtor Written Interrogatories Against Defendant Aileen Pham is GRANTED.

		Plaintiff M.V. Partners' Motion to Compel Response to Post Judgment Debtor Request for Documents Against Defendant Aileen Pham is GRANTED. Defendant Aileen Pham is ORDERED to serve full, complete, and verified responses to Post Judgment Debtor Written Interrogatories (Set One), without objections, within 30 days of service of the notice of ruling. Defendant Aileen Pham is ORDERED to serve full, complete, and verified responses and responsive documents to the Post Judgment Debtor Request for Documents (Set One), without objections, within 30 days of service of the notice of ruling. Defendant Aileen Pham is ORDERED to pay to Plaintiff M.V. Partners sanctions in the amount of \$1,432.50 (3.5 hours x \$375 per hour in reasonable attorney's fees and \$120 in motion filing fees) within 30 days of service of the notice of ruling. Plaintiff and Judgment Creditor M.V. Partners moves to compel Defendant and Judgment Debtor Aileen Pham to serve responses to the Post Judgment Debtor Written Interrogatories (Set One) and to serve responses and responsive documents to the Post Judgment Debtor Request for Documents (Set One). <u>Standard to Compel Responses to Post-Judgment Interrogatories</u> A judgment creditor who has obtained a judgment "may propound written interrogatories to the judgment debtor . . . requesting information to aid in enforcement of the money judgment" in the manner provided by the Civil Discovery Act, Civil Procedure Code section 2030.010, <i>et seq.</i> (Code Civ. Proc., § 708.020, subd. (a).) "The judgment debtor shall answer the interrogatories in the manner and within the time provided by" the Civil Discovery Act, Civil Procedure Code section 2030.010, <i>et seq.</i> (<i>Ibid.</i>) In addition, post-judgment interrogatories may be enforced in the same manner as interrogatories in a civil action. (Code Civ. Proc., § 708.020, subd. (a).) In a civil action, when a party properly propounds interrogatories and the party receiving the
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		interrogatories fails to respond, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.” (Code Civ. Proc., § 2030.290, subd. (b).) Further, when the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) “The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2030.290, subd. (a).) <u>Standard to Compel Responses to Post-Judgment Requests for Production</u> A judgment creditor who has obtained a judgment “may demand that any judgment debtor produce and permit the party making the demand, or someone acting on that party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made . . . if the demand requests information to aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.030, subd. (a).) The request for production shall be made in the same manner as provided by the Civil Discovery Act, Civil Procedure Code section 2031.010, <i>et seq.</i> (<i>Ibid.</i>) “The judgment debtor shall respond and comply with the demand in the manner and within the time” provided by the Civil Discovery Act, Civil Procedure Code section 2031.010, <i>et seq.</i> (<i>Ibid.</i>) In addition, post-judgment interrogatories may be enforced in the same manner as requests for production in a civil action. (Code Civ. Proc., § 708.030, subd. (c).) In a civil action, when a party properly propounds requests for production and the party receiving
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		the requests fails to respond, “[t]he party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).) As with interrogatories, when a party fails to respond to valid requests for production, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) In addition, “[t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product” (Code Civ. Proc., § 2031.300, subd. (a).) <u>Post-Judgment Written Interrogatories</u> On June 16, 2023, Plaintiff M.V. Partners obtained a default judgment against Defendants Spectra Yoga, LLC dba Spectra Yoga, Aileen Pham, and Aileen Pham, in the amount of \$354,380.47. (ROA #36; Decl. of Ernie Zachary Park (Park. Decl.), ¶ 5.) Therefore, Plaintiff is a judgment creditor and Defendant Aileen Pham is a judgment debtor to whom Civil Procedure Code section 708.020 apply. Plaintiff presented evidence that, on July 30, 2023, Plaintiff served on Defendant Aileen Pham the Post Judgment Debtor Written Interrogatories (Set One). (Park Decl., ¶ 6, Exh. 2.) Plaintiff also submitted evidence that, as of October 12, 2023, Defendant Aileen Pham had not served responses. (<i>Id.</i>, ¶ 7.) Nor is there evidence that Defendant Aileen Pham served responses to the Post Judgment Debtor Written Interrogatories (Set One) after October 12, 2023. Further, Defendant Aileen Pham did not file an opposition or a response, and has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on
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		appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) The court will grant the motion and order that responses be served with respect to the Post Judgment Debtor Written Interrogatories (Set One) served on Defendant Aileen Pham. <u>Post-Judgment Requests for Production</u> Plaintiff also presented evidence that, on July 30, 2023, Plaintiff served on Defendant Aileen Pham the Post Judgment Debtor Request for Documents (Set One). (Park Decl., ¶ 6, Exh. 2.) In addition, Plaintiff submitted evidence that, as of October 12, 2023, Defendant Aileen Pham had not served responses. (<i>Id.</i>, ¶ 8.) Nor is there evidence that Defendant Aileen Pham served responses to the subject discovery requests after October 12, 2023. Further, Defendant Aileen Pham did not file an opposition or a response, and has waived any arguments on this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) The court will grant the motion and order that responses be served with respect to the Post Judgment Debtor Request for Documents (Set One) served on Defendant Aileen Pham. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c); Code Civ. Proc., §§ 2031.300, subd. (c).) California Rules of Court rule 3.1348(a) further provides that “[t]he court may award sanctions
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		under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a). Defendant Aileen Pham did not oppose or respond to either of the instant motions and, thus, has not provided any substantial justification or pointed to any circumstances that would make the imposition of sanctions unjust. However, some of the attorney’s fees requested as sanctions are unnecessary in light of the fact that Plaintiff did not incur any attorney’s fees to review an opposition or prepare a reply. The court will reduce the amount of sanctions accordingly. Plaintiff shall give notice of this ruling.
7	Mejico vs. Newland Garden Apartments, L.P. 30-2023-01337727	<u>Motion to Quash</u> Pursuant to the Notice of Withdrawal of Motion to Quash Service of Summons and Complaint filed December 21, 2023, (ROA 35), this matter is taken OFF CALENDAR.
8	National Funding, Inc. vs. Hard Rock Exteriors LLC 30-2023-01334334	<u>Motion for Summary Judgment</u> Plaintiff National Funding, Inc.’s Motion for Summary Judgment is GRANTED. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Hard Rock Exteriors LLC dba Nu Normal as to the 1st Cause of Action of the Complaint in the amount of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law. The court ORDERS that judgment shall be entered in favor of Plaintiff National Funding, Inc. and against Defendant Robert Bitz as to the 2nd Cause of Action of the Complaint in the sum of \$374,191.91 plus any prejudgment interest, reasonable attorney’s fees, and costs allowed by law.